

26STCV03205 26STCV03205

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-08-31

Motion: PLAINTIFF'S REQUEST FOR DEFAULT JUDGMENT

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Case Number: 26STCV03205 Hearing Date: August 31, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

MARY

HANSEL, an individual,

Plaintiff,

vs.

CLUTTER, INC., a Delaware corporation, and DOES 1 to 20,
inclusive,

Defendants.

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CASE

NO.: 26STCV03205

[TENTATIVE] ORDER RE: PLAINTIFF'S
REQUEST FOR DEFAULT JUDGMENT

Dept. 733

8:30 a.m.

August 31, 2026

I.

INTRODUCTION

This action arises
out of Defendant Clutter, Inc.'s ("Defendant") continued retention and

threatened disposal of Plaintiff
Mary Hansel's ("Plaintiff") personal property following a judgment entered in
Plaintiff's favor.

On

January 30, 2026, Plaintiff filed a complaint against Defendant, alleging
causes of action for (1) Claim and Delivery/Recovery of Specific Personal
Property; (2) Conversion; (3) Trespass to Chattels; (4) Declaratory Relief; and
(5) Unfair Competition.

On March 10, 2026

the Court granted in part Plaintiff's ex parte application for temporary restraining order and order to show cause re: preliminary injunction. The Court issued a temporary restraining order ("TRO") preventing defendant or any of its agents from selling, transferring or otherwise disposing of Plaintiff's belonging in defendant's possession and prohibiting Defendant from initiating or proceeding with a warehouse lien sale or auction of Plaintiff's belongings.

On

March 20, 2026, the Court Clerk then entered default against Defendant.

On

April 16, 2026, the Court granted Plaintiff's request for preliminary injunction. The Court ordered Defendant and its agents enjoined from selling, transferring or otherwise disposing of Plaintiff's belonging in Defendant's possession, including initiating or proceeding with a warehouse lien sale or auction of Plaintiff's belongings.

On

June 11, 2026, Plaintiff filed a Request for Default Judgment.

On

June 24, 2026, the Court dismissed Does 1-20.

II.

LEGAL STANDARD

Code of Civil

Procedure section 585 permits entry of a judgment after a Defendant has failed to timely answer after being properly served. A party seeking judgment on the default by the Court must file a Request for Court Judgment, and: (1) a brief summary of the case; (2) declarations or other admissible evidence in support of the judgment requested; (3) interest computations as necessary; (4) a memorandum of costs and disbursements; (5) a proposed form of judgment; (6) a dismissal of all parties against whom judgment is not sought; (7) a dismissal of all parties against whom judgment is not sought or an application for separate judgment under Code of Civil Procedure section 579, supported by a showing of grounds for each judgment; (8) exhibits as necessary; and (9) a request for attorneys' fees if allowed by statute or by the agreement of the parties. (Cal. Rules of Court Rule 3.1800.)

III.

DISCUSSION

SUBMITTED: CRC

3.1800

1.

Use

of JC Form CIV-100 Yes

2.

Dismissal or judgment of non-parties to the judgment Yes

3.

Declaration

of non-military status for each defendant Yes

4.

Summary

of the case Yes

5.

585(d)

declarations/admissible evidence in support Yes

6.

Exhibits (as necessary) Yes

7.

Interest computation (as necessary) N/A

8.

Cost memorandum Yes

9.

Request for attorney fees (Local Rule 3.214) N/A

Damages Summary:

Damages

\$ 4,896.00

Interest

\$ 0

Attorneys' fees

\$ 0

Costs

\$ 1,121.23

TOTAL

\$ 6,017.23

Other relief requested

Injunctive Relief

Plaintiff seeks a default judgment in the amount of \$6,017.23, which includes \$4,896.00 in damages and \$1,121.23, as well as injunctive relief.

Plaintiff

has provided a cost memorandum as to the incurred costs, which includes \$495.00 for Clerk's filing fees, \$75.00 for Process server's fees, and \$551.23 for Vendor fees.

For any damages

claimed, "Plaintiffs

in a default judgment proceeding must prove they are entitled to the damages claimed.' [Citation]." (Kim v. Westmoore Partners, Inc.

(2011) 201 Cal.App.4th 267, 288.) "[T]he plaintiff must affirmatively establish his entitlement to the specific judgment requested." (Id. at p. 287.)

Plaintiff declares the following.

Plaintiff is the exclusive owner of the personal belongings in Defendant's custody that are the subject of this action ("Personal Property"). The Personal Property is comprised of irreplaceable contents, including family heirlooms, keepsakes from my decades of travels and other personal items with sentimental value. (Hansel Decl., ¶ 2.) In May 2023, Plaintiff attempted to hire Defendant for moving and storage services. On moving day, Defendant took possession of Plaintiff's Personal Property. (Id. ¶ 3.) Once Plaintiff realized Defendant's misrepresentations, Plaintiff declined to sign a contract with Defendant. (Id. ¶ 4.) Despite Plaintiff's objections, internal complaints and attempts at informal resolution through the Better Business Bureau, Defendant retained the Personal Property and charged unauthorized amounts to Plaintiff's credit card. (Id. ¶ 5.) Of these unauthorized charges, \$4,601 were processed. (Id. ¶ 6.)

On May 20, 2025, Plaintiff filed a Small Claims Court action against Defendant. (Id. ¶ 7.) The complaint sought recovery of the \$4,601 processed by Plaintiff's credit card and a finding of no balance owed. (Ibid.) After the hearing, the Court rendered its decision (the "Judgment"), which states: "Court orders judgment entered for Plaintiff Mary Hansel against Defendant Clutter, Inc." The Judgment expressly ordered Defendant to refund the entire amount taken from the credit card and compensate a portion of Plaintiff's litigation costs. (Id. ¶ 9, Ex. B [judgment].)

Ultimately, Defendant paid the judgment. (Id. ¶ 11.) Later, Plaintiff requested Defendant to return Plaintiff's Personal Property, and offered to provide a location in the Los Angeles area for Defendant to transport them. (Id. ¶ 12.) Defendant has refused to return the Personal Property, and has since sent an "Official Clutter Auction Notice" stating it will proceed with enforcing its lien rights under Commercial Code sections 7209 and 7210 by holding an online auction on StorageTreasures, LLC commencing March 11, 2026 at 2:30 p.m. (Id. ¶¶ 14, 17, Ex. E.)

On May 6, 2026, Defendant sent Plaintiff another auction notice, despite the Court's preliminary injunction. The notice stated that Defendant will auction the Personal Property via StorageTreasures on June 10, 2026. (Id. ¶ 23, Ex. H.) Defendant sent new notices on May 14 and May 25, 2026. (Id. ¶ 23, Exs. I, J.)

To establish her loss-of-use damages, Plaintiff provides a copy of the inventory list of the Personal Property that remains in Defendant's custody. (Id. ¶ 27, Ex. K.) By July 17, 2026, Defendant will have deprived Plaintiff of possession and use of the Personal Property for one full year after her request for its return. (Id. ¶ 26.)

To calculate her loss-of-use damages, Plaintiff used Inhabitr as the rental price reference for the itemized loss-of-use calculation because it provides publicly available, item-specific monthly rental prices for household furniture and organizational items. (Id. ¶ 29.) She used this platform for estimating reasonable rental value for temporary substitute use on an item-by-item basis. (Id. ¶ 30.)

For each item included in the calculation, Plaintiff selected the closest reasonable Inhabitr comparator based on the item's apparent function, size and use as reflected in Defendant's inventory photographs and descriptions. She did not use the lowest-priced item in a category where that item appeared materially smaller or less functional than the item shown in Defendant's inventory. For example, for the dresser, desk and larger shelving or bookcase items, Plaintiff selected comparators reflecting larger storage or work-surface furniture rather than minimal or clearance items. Plaintiff multiplied each monthly rental price by twelve months, corresponding to the period from July 17, 2025, when she requested return of her belongings, through July 17, 2026. Plaintiff excluded taxes, delivery charges, setup charges, protection plans and other fees. (Id. ¶ 31.)

Plaintiff provides her itemized loss-of-use calculation. (Id. ¶ 32, Ex. L.) Based on this conservative item-by-item methodology, Plaintiff calculated one year of loss-of-use damages at \$4,896, exclusive of taxes, delivery charges, setup charges, protection plans or other fees. This calculation values only the loss of use and possession of substitute household or organizational items during Defendant wrongful detention. (Id. ¶ 33.)

However, while Plaintiff does not seek the fair market value of her Personal Property, she is seeking both loss-of-use damages and injunctive relief for the return of her Personal Property. This is

impermissible, as the loss-of-use calculations surpass the depreciated value of the items possessed, and thus, Plaintiff must elect either pursuing a remedy at law (loss-of-use) or an equitable remedy (injunction). (See *Teutscher v. Woodson* (9th Cir. 2016) 835 F.3d 936, 955–56 [“The election-of-remedies doctrine, which ‘refers to situations where an individual pursues remedies that are legally or factually inconsistent,’ operates to ‘prevent[] a party from obtaining double redress for a single wrong.’ A party is bound by his election of remedies if three conditions are met: ‘(1) two or more remedies ... existed at the time of the election, (2) these remedies [are] repugnant and inconsistent with each other, and (3) the party to be bound ... affirmatively chose[], or elected, between the available remedies.’”] (citations omitted).)

Should Plaintiff

elect to pursue the equitable remedy of a permanent injunction, Plaintiff must adequately establish her entitlement to it, including the inadequacy of the remedy at law for all items sought to be repossessed. (*City of South Pasadena v. Department of Transportation*, (1994) 29 Cal.App.4th 1280, 1293 [“To qualify for a permanent injunction, the plaintiff must prove (1) the elements of a cause of action involving the wrongful act sought to be enjoined and (2) the grounds for equitable relief, such as, inadequacy of the remedy at law.”]; *Porporto v. Devincenzi* (1968) 261 Cal.App.2d 670, 674 [“inadequacy of the legal remedy is the ‘keystone of equitable jurisdiction’”].)

IV.

CONCLUSION

Therefore, Plaintiff's

Request for Default Judgment is CONTINUED to Monday, September 28, 2026 at 8:30am.

Dated this 31st
day of August 2026

Hon. Gary
D. Roberts

Judge
of the Superior Court